

Bye-Laws for the State Board of Digamber Jain Religious Trusts

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State of Bihar - Act

Bye-Laws for the State Board of Digamber Jain Religious Trusts

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Bye-Laws for the State Board of Digamber Jain Religious Trusts

Rule BYE-LAWS-FOR-THE-STATE-BOARD-OF-DIGAMBER-JAIN-RELIGIOUS-TRUSTS of 1800

Published on 1 January 1800

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Bye-Laws for the State Board of Digamber Jain Religious Trusts

1.

Definition.

- In these Bye-laws, unless the context otherwise requires-

(a)

"The Act" means the Bihar Hindu Religious Trusts Act, 1950;

(b)

"Appendix" means an appendix annexed to these bye-laws;

(c)

"Board" means the Bihar State Board of Digamber Jain Religious Trusts;

(d)

"Form" means a Form set out in the Appendix to these bye-laws;

(e)

"President" means the President of the Board or a Regional Trust Committee, as the case may be;

(f)

"Presiding Officer" means a person presiding over the meeting of the Board or a Committee or a Regional Trust Committee, as the case may be;

(g)

"Rule" means a Rule made under Section 82;

(h)

"Section" means a Section of the Act; and

(i)

"Registered Trusts" means Trusts which have been entered in the Register maintained by the Board under bye-laws No. 22.

2.

Conduct of the proceedings of the Board.

(1)

All meetings of the Board shall ordinarily be held in the office of the Board.

(2)

No business other than that included in the agenda issued for the meeting, shall be transacted at the meeting except with the special permission of the Presiding Officer:

Provided that at a special meeting only such business shall be transacted as is included in the agenda.

(3)

A member when speaking shall not be interrupted except on a point of order or while seeking information or on personal explanation by a member. On a point of order being raised or when the Presiding Officer is speaking, the member speaking shall resume his seat. A member shall not be allowed to speak twice except by way of reply without the special leave of Presiding Officer.

3.

Absence of quorum.

- Any member may at any stage draw the attention of the Presiding Officer to the absence of a quorum for the meeting and in the absence of a quorum, the meeting shall be adjourned.

4.

Re-opening of decided question.

- No question once decided by the Board shall be re-opened within six months of the decision except with special leave of the Presiding Officer on a requisition signed by at least six members of the Board.

5.

Proposals of thanks, etc.

- Proposals relating to thanks, message of congratulations or condolence or other matters of a like nature may be moved without notice by the Presiding Officer or with his permission, by any member.

6.

Closure of debate.

- Any member may move the closure of debate on a motion. The closure so moved shall be put to vote. On a closure being accepted, the mover of the resolution shall have a right of reply, but the mover of an amendment shall not have any right of reply.

7.

Recording of Votes.

- Votes shall be recorded at the meeting by show of hands or by secret ballot at the discretion of the Presiding Officer.

8.

Minutes of proceedings.

- Minutes of proceedings of all meetings shall be recorded in Hindi (Devanagiri Script) or in English and entered in a book to be kept for the purpose and shall be signed by the Presiding Officer. The Superintendent or, in his absence, the Presiding Officer or any person authorised by the Presiding Officer shall record the proceedings of meetings.

9.

When any emergency arises and it is not possible to hold a meeting of the Board, the decision of the Board will be ascertained by circulation of papers through post. The papers will be sent by registered post to each member of the Board to his permanent address and if no reply is received within the time specified therein, it will be assumed that the member has no comments to make. The members will intimate any change of permanent address to the President.

10.

The Board may employ the following officers and servants on the scales of pay mentioned against their names:-

(1)

One Superintendent-Rs. 350-15-380-30-590-E. B. -30-770-40-850;

(2)

One Senior Assistant-Rs. 120-8-200.

(3)

Three Junior Assistants-Rs. 70-3-85-E.B. -4-105-2-140;

(4)

One Accountant-cum-Cashier-Rs.120-4-140;

(5)

Ten Inspectors-Rs. 125-250;

(6)

Four Auditors-Rs. 150-5-2-175-7/2-215-E.B.-2-250;

(7)

One Stenographer-Class 1-Rs. 125-250;

(8)

Two Typists-Rs. 60-2-80-E.B.-2-100;

(9)

Sixteen peons-Rs. 22 1/2-1/2-27 1/2;

(10)

One Record Supplier-Rs. 28-1/2-40:

Provided that for any reason, the Board may, with the previous approval of the State Government, give a lower scale of pay to its employees.

They shall also be entitled to the cost of living allowance on the scales admissible to officers and servants of the State Government of a similar status.

11.

The accountant shall be required to furnish a security of Rs. 250 in cash. Personal security may be accepted for double the amount of cash security from solvent sureties.

12.

Officers & servants of the Board shall be governed by the revised leave Rules for Government servants as laid down in the Bihar Service Code. Leave of all kinds admissible under the said Rules be granted by the President of the Board.

13.

The Board may, by a special resolution, constitute a contributory Provident Fund for the officers and servants of the Board. They shall subscribe to the Fund at the rate of one anna per rupee of their salary each month to which an equal amount shall be added from the Trust Fund. The total amount accrued to the Fund will be paid to them at the end of their service. The Provident Funds Act, 1925 (XIX of 1925) & the Bihar General Provident Fund Rules shall apply mutatis mutandis to the officers and servants of the Board. The Board shall frame separate bye-laws for the management of the Provident Fund.

14.

The Superintendent shall be responsible for the proper management of the Office. All establishment matters relating to the staff shall pass through him.

15.

The common seal of the Board shall remain in the custody of the Superintendent.

16.

An enquiry shall precede every order imposing any substantive punishment, other than fine, on any officer or servant.

The charge or charges against the officer or servant shall be reduced to writing and communicated to him. The evidence against him shall be brought on record and explained to him and he shall be allowed to rebut the evidence adduced against him and to furnish in writing such explanation as he may have to offer. The order passed after such enquiry shall contain a statement of the charge or charges, the explanation of officer or servant, and explanation of evidence for and against him and the finding on each charge. A copy of the order shall without delay be communicated to the Officer or servant.

17.

The powers and duties of the Board specified below shall be exercised and performed by the President-

(a)

to prepare and maintain a complete record of all religious trusts in the State;

(b)

to prepare and maintain a register containing copies of all documents creating any religious trust;

(c)

to take measures for the recovery of lost property of any religious trust;

(d)

to authorise the Superintendent or any member, officer or servant of the Board to inspect the property and the office of any religious trust;

(e)

to call for information, reports, returns and other documents from trustees;

(f)

to give directions for the proper administration of a religious trust in accordance with the law governing such trust and the wishes of the founder in so far as wishes can be ascertained and are not repugnant to such law;

(g)

to direct the deposit of the endowment money of a religious trust in the hands of a trustee in the State Bank of India or any Bank approved by the State Government;

(h)

to control and administer the Trust Fund subject to the general supervision of the State Government;

(i)

to keep correct and regular accounts of the receipt and disbursements of the Board and submit the same for audit;

(j)

to furnish to the State Government any statement, report, return or other document and any information which the State Government may require;

(k)

to institute an enquiry relating to the administration of any religious trust;

(l)

to direct the trustee of a religious trust to institute in a court of law any suit or proceeding in respect of the trust or any matter connected therewith;

(m)

to defend any suit or proceeding instituted with respect to religious trusts;

(n)

to direct the trustee of a religious trust to apply to the appropriate officer or authority to enter in a record of right or municipal record, if any, the right, title or interest of such trust in any immovable property;

(o)

to realise out of income of any religious trust the costs incurred by the Board in any suit or proceedings instituted under clauses (o), (p) or (q) of Section 28(2);

(p)

to permit a trustee to retire from office;

(q)

to extend, for sufficient reason, the time within which any act or thing is required or ordered to be done before the Board under any of the provisions of the Act;

(r)

to settle schemes for proper administration of religious trusts;

(s)

to appoint temporary trustees;

(t)

to prepare and maintain a register of all religious trusts in the State;

(u)

to grant copies of proceedings and records and any other documents on payment of fees;

(v)

to make certain payments on behalf of the religious trusts and to recover the same from the property of the trusts concerned;

(w)

to make application to the District Judge in case of failure of performance of any religious, pious or charitable act the performance of which is charged on any property;

(x)

to make an application to the District Judge to compel the trustees to discharge obligations or for the appointment of a receiver;

(y)

to permit any person interested in a religious trust to make an application to the District Judge for removal of a trustee or the appointment of trustee;

(z)

to make an application to the District Judge where the object of any trust is vague or uncertain;

(zi)

to apply to the Court for addition of the Board as a party to any suit or proceeding instituted in respect of any religious trust or property by a trustee or any other person;

(zii)

to accord approval to compromise, arrangement, etc., in any suit or proceeding;

(ziii)

to summon and enforce attendance of witnesses and compel production of documents;

(ziv)

to give opinion, advice, or direction to a trustee of a religious trust on any question affecting the management or administration of the property of such trust.

18.

The following notices, decisions and orders of the Board shall be published in any paper published in the State for the information of the public in general and person interested in particular:-

(a)

all appointments, suspensions, dismissal or removal of officers and servants of the Board;

(b)

appointments, suspensions, removals or retirements of trustees of registered trusts;

(c)

supersession of trusts, associations or Committee; and

(d)

the appointment of Committees under the Act.

19.

Receipts for money paid to the Board shall be granted by the head of the accounts section of the office of the Board and countersigned by the Superintendent. Temporary receipts may be granted by the Inspecting Officers of the Board for money paid to them.

20.

All money received by the Board or trustee shall be lodged in the State Bank of India, and if there be no branch of the State Bank of India near the Head Office of the trust then in a Scheduled Bank as defined in the Reserve Bank of India Act, 1934, and approved by the President.

Any money which is not required for immediate expenditure shall be invested with the previous sanction of the

President, (a) in promissory notes or debentures or other security of Central Government, or (b) in promissory notes, debentures, stock or other securities of the State Government, or (c) in a post office Saving Bank or (d) in fixed deposits for period not exceeding three years in the State Bank of India or in Scheduled Bank as defined in the Reserve Bank of India Act, 1934.

A trustee may withdraw money with the previous sanction of the Board.

The President will operate all accounts in the State Bank of India or any other bank in which the accounts of the Board are kept. During his absence from headquarters of the Board or if for any reason he is unable to perform his duties, the Superintendent and a member of the Board will jointly sign cheques for withdrawal of money.

21.

Every trustee of a religious trust shall prepare a budget of the estimated income and expenditure of the trust for the next succeeding year and get the same passed by the Managing Committee. He shall send the budget in Form 5 of Appendix IV together with a true copy of the resolution passed by the committee to the President by registered post, so as to reach him two and half months before the commencement of the succeeding year. All the particulars contained in the Form shall, be furnished as accurately as possible.

22.

The Board shall prepare and maintain a register of religious trusts in Form III.

23.

The following books and Registers shall be kept in the office of the Board:-

- (i)
Minutes of the Proceedings of the Board;
- (ii)
Minutes of the Proceedings of the Finance Committee;
- (iii)
Minutes of the Proceedings of the Property Committee;
- (iv)
Minutes of the Proceedings of the Registration Committee;
- (v)
Register of Trusts;
- (vi)
Register of true copies of documents and other paper connected with registered trusts;
- (vii)
Cash Register;
- (viii)
Stock Register of the Board;
- (ix)
Property Register of the Board;
- (x)
Daily Account Book;
- (xi)
Monthly abstract of accounts;
- (xii)
Receipt book for money received;
- (xiii)
Cheque Book;
- (xiv)
Pass Book;
- (xv)
Cash Register;
- (xvi)
Correspondence file;
- (xvii)

Register of letters issued;

(xviii)

Register of letters received;

(xix)

Order Book;

(xx)

Inspection Book;

(xxi)

Visit Book;

(xxii)

Daily Attendance Register;

(xxiii)

Leave Register;

(xxiv)

Establishment Register;

(xxv)

Service Book;

(xxvi)

Register of articles issued;

(xxvii)

Audit Register of Trust Fund;

(xxviii)

Audit Register of Registered Trust; and

(xxix)

Acquittance Roll.

24.

All receipt books after they are printed shall be entered in the stock register and kept under the custody of the Superintendent. All receipt books issued shall be entered in the register of articles issued and each entry shall be signed by the Superintendent. All cheques books shall remain in the custody of the Superintendent.

25.

The accounts of religious trust shall be audited annually or at such shorter intervals as the President may fix. The report of the auditor shall, in addition to the requirements of sub-section (4) of Section 63, contain the following particulars:-

(1)

Whether the accounts are maintained regularly and in accordance with the provisions of the Act and the Rules;

(2)

Whether receipts and disbursements are properly and correctly shown in the accounts;

(3)

Whether the cash balance and vouchers in the custody of the trustees on the date of the audit were in agreement with the accounts;

(4)

Whether there have been any deviations from its budget;

(5)

Whether the various items of its income have been realised at the proper time and whether legal steps to recover amounts over due have been taken;

(6)

Whether proper investments of its surplus and balance have been made;

(7)

Whether every item of its expenditure has been sanctioned by the authority competent in that behalf and is supported by a proper voucher;

(8)

Whether there has been any diversion of its funds for purposes other than those for which the endowment was

established;

(9)

Whether a correct entry of its valuables has been maintained;

(10)

Whether a correct list of its liabilities has been maintained;

(11)

Whether its assets, including its cash balance, have been verified by him;

(12)

Alienations, if any, of immovable property contrary to the provisions of section 44 which have come to the notice of auditor; and

(13)

Any special matter which the auditor may think fit or necessary to bring to the notice of the Board.

26.

After the completion of the audit, the auditor shall prepare and abstract of the audited accounts for publication and submit the abstract along with his report. The abstract shall be published as provided hereunder:-

Description of the authority to which the accounts relate

By whom to be published

Time for publication

Where to be published.

1. The President

2. Trusts

State Government

The President

As soon as possible after the

receipt of the auditor's report by the Government.

Within a fortnight after the receipt of the auditor's report by the President.

The Bihar Gazette.

On the notice Board of the office of the trust concerned.

27.

Appointment of Committees under Section 22 and their functions and procedure.

- The Board shall appoint the following Committees, namely:-

(1)

Finance Committee;

(2)

Property Committee; and

(3)

Registration Committee:

Provided that if the Board for any reason considers the appointment of any committee not necessary, the State Government may on the recommendations of the Board keep in abeyance the appointment of such committee for any period the State Government may think necessary.

28.

Nothing contained in these bye-laws shall affect the power of the Board to appoint temporary committees for specific matters and to regulate their functions and procedure by a resolution.

29.

Every Committee shall consist of four members besides the President who shall be an ex-officio member. The President shall preside at the meeting:

Provided that, in the absence of the President, the members present shall elect one of their own number to preside at the meeting of the committee.

30.

When the names of more than the required number of candidates for election as members of a Committee are proposed, the candidates securing the largest number of votes shall be declared duly elected. In case of an equality of votes, the Presiding Officer shall have a second or casting vote.

31.

Every Committee shall meet at least once a month, provided the President considers that there is enough work to justify the convening of a meeting of the Committee. Two members shall form the quorum. Every Committee shall be elected for a term of one year such term is extended for a specified period by a resolution of the Board. The Superintendent shall act as the Secretary to all Committees except when a Committee appoints another officer of the Board as its Secretary. The Secretary shall prepare the agenda and convene meeting of the Committee with the approval of the President. At least seven day's notice shall be given to the members for ordinary meetings and at least three day's notice for special meetings of the Committee.

32.

A minute book shall be maintained for every committee for recording the proceedings of its meetings. The minutes shall be signed by the Secretary and the Presiding Officer and shall be subject to confirmation by the Committee at its next meeting. The minutes shall be placed before the Board at its next meeting for the approval or the information of the Board, as the case may be.

33.

The Board may dissolve a Committee by a resolution passed by two-thirds of the total number of the members present and voting at a meeting specially convened for the purpose and may thereafter proceed to elect a fresh committee in its place.

34.

If a member of a committee, other than the President, fails to attend three consecutive meetings of the Committee without showing sufficient cause to the satisfaction of the Board, he shall cease to be a member of the Committee and the Board shall appoint another person to fill the vacancy.

35.

In addition to the powers and functions prescribed in the bye-laws for each Committee, it shall be open to the Board to delegate by special resolution additional powers and functions for a specified period when such course appears expedient for the proper conduct of business.

36.

Finance Committee.

(a)

The following shall be the powers and function of the Finance Committee:-

(1)

to prepare the budget of the Board;

(2)

to prepare the budget of the trusts whose trustees have failed to submit their budgets in time;

(3)

to scrutinise the budgets submitted by trusts;

(4)

to pass those budgets of trusts which may from time to time be entrusted to it by the Board by means of a resolution;

(5)

to call for from the trustees reports, returns budget and other documents, whenever considered necessary;

(6)

to scrutinise and report on the monthly accounts of the Board;

(7)

to make, if necessary, such alteration or modification in the budget of a registered trust as may not be inconsistent with any of the provisions of the Act or with the objects for which the trust was created.

(8)

to communicate to the trustees of a registered trust modification or alterations, if any, made in the budget within six weeks from the date of the receipt of the budget of the said trust;

(9)

to consider all proposals having financial implications;

(10)

to recommend to the Board the conversion of trust property into property of a different nature if the Committee is satisfied that such conversion is advantageous to the trust concerned;

(11)

to institute, whenever it thinks fit, any enquiry relating to the administration of a registered trust and to submit a report if required, for necessary action by the Board;

(12)

to sanction payment out of the trust fund of any arrear of land revenue, cess, rent, rates or taxes due to Government or any local authority from the registered trust whose trustee refuses or fails to pay it and also to recover the same with damages at the rate of twelve and half percentum per annum in case the failure or refusal to pay was wilful or negligent;

(13)

to supervise and control the work of registered trusts;

(14)

to enquire into and consider all financial irregularities and pass final orders thereon, or, if it thinks fit to report to the Board.

(15)

to re-appropriate funds from one head to another subject to such restrictions, if any, as may be imposed by a resolution of the Board.

(16)

to prepare, if necessary, during the currency of a financial year revised budget estimate for the trust fund and take such action as it considers necessary;

(17)

if a trustee applied for revision of the budget during the year, to take such action as it considers necessary;

(18)

to consider all proposals for the creation of new posts or alterations in the scales of pay of existing posts under the Board and forward its recommendations to the Board;

(19)

Subject to delegations made to the Superintendent or any other officer of the Board, to consider the report of the auditors on the accounts of the registered trusts and pass necessary orders thereon provided that the Committee shall obtain a report containing a general appreciation of the working of the trust during the year with special reference to their financial administration and forward the same to the Board with its own comments;

(20)

to consider the auditor's report on the accounts of the trust funds and submit the same with its comments to the Board;

(21)

to consider such other matters as may be referred to it by the Board or any other Committee;

(22)

to sanction appointment to posts under the Board carrying a salary exceeding Rs. 100; and

(23)

to consider the report of auditors on the accounts of the subordinate registered trust and pass necessary order thereon.

(b)

If any item of expenditure is not specifically provided for in the budget of a trust, but can be met out of saving under a similar head, it may be sanctioned by the Finance Committee, provided such item does not exceed Rs. 500 in the case of non-recurring expenditure, or Rs. 100 in the case of recurring expenditure and by the Board, on the recommendation of the Finance Committee, provided it exceeds Rs. 500 in the case of non-recurring expenditure or Rs. 100 in the case of recurring expenditure.

37.

Property Committee.

- The following shall be the powers and function of the Property Committee:-

(1)

to see that shops, houses, flats, lands, etc., are leased to the best advantage of the trusts;

(2)

to consider all schemes for improving the values of trust properties by all legitimate means and with the concurrence of the Finance Committee, implement such schemes whenever it can be done without infringement of the conditions of the trust;

(3)

to ensure the proper up keep of plans and title-deeds of lands and buildings belonging to the trusts;

(4)

to sanction or cancel the lease of trust properties;

(5)

to see that proper and effective steps are taken to guard against or, where necessary, remove encroachment on the properties of trusts;

(6)

to sanction the filing of cases in Courts in connection with trust properties and subject to the budget provision sanction the expenditure for the same;

(7)

subject to the provision in the budget, to sanction expenditure in defending cases connected with trust property when filed against the Board;

(8)

to consider whether properties are being used to the best advantage of the trust concerned and to submit a report to the Board;

(9)

to consider such other matters as may be referred to it by Board or any committee;

(10)

to take whatever steps are necessary to trace out lost trust property and suggest means for the restoration or recovery of such property; and

(11)

to take steps for the repair and construction of building of trust.

38.

Registration Committee.

- The following shall be the powers and functions of the Registration Committee:-

(1)

To take necessary steps for the speedy registration of all trust properties in the State;

(2)

to consider and pass on all matters connected with registration of trusts;

(3)

to prepare and maintain a register of all kinds of trusts in the State of Bihar containing information relating to their origin, extent, nature, income, if any, and objects and beneficiaries; and

(4)

to prepare and maintain a Register containing copies of documents of all trusts.

39.

Regional Trust Committee.

- A Regional Trust Committee shall consist of not more than seven members and four members shall form the quorum for a meeting of such committee. Four members shall also form the quorum for the meeting to elect the President of the said meeting.

40.

The Rules for the conduct of meetings of a Regional Trust Committee shall, as far as practicable, be the same as provided in these bye-laws, for the meetings of the Board or a Committee.

41.

The staff required for a Regional Trust Committee shall be determined by the Board according to the requirement of each Regional Trust Committee. The conditions of service of such staff shall be the same as those of the staff of the Board.

42.

A member of a Regional Trust Committee may draw travelling allowances as laid down in the Bihar Travelling Allowance Rules for the State Government servants of the second class, for attending meetings and undertaking journeys in connection with the affairs of the Committee.

43.

Every Regional Trust Committee shall prepare its budget every year and submit it to the Board for sanction by the 15th January.

44.

Every Regional Trust Committee shall maintain a Register of local trusts, Account Book, Order Book, Visitors Book and Acquittance Roll.

45.

The trustee of every religious trust shall maintain Books and Registers as detailed in Appendix I.

46.

All notices or directions for any act to be done by a trustee shall ordinarily be sent by registered post. In case of refusal to accept or avoidance of service of any notice or direction, it shall be sent by a peon and the cost so incurred shall be recoverable from the trustee or the property under his charge at the discretion of the President.

47.

The trustee shall send to the Board a budget in Form 5 of Appendix IV duly passed by the Managing Committee for approval, two and half months before commencement of every financial year of the trust, and for assessment of trust fees, he shall send informations (return) in Form I of Appendix II together with admitted trust fees within six months after the close of the year.

48.

Preservation of Order.

- The Presiding Officer shall maintain order at the meeting of the Board or Committee and may adjourn it when disorder prevails or there is likelihood of any disorder. If a member fails to comply with the order of the Presiding Officer, he may be expelled from the meeting.

49.

Notice of questions.

- Any member may give notice of questions for any meeting regarding any matter within the competence of the Board or Committee at least five clear days before the date of the meeting. The Presiding Officer may disallow any question which has no bearing on trust matter and the decision of the Presiding Officer shall be final.

50.

Notice of resolution.

- Any member may give notice of the resolution to be included in the agenda of a meeting at least six days before the date of such meeting. All resolutions shall relate to a subject within the competence of the Board or Committee. Any member may give notice of an amendment to a resolution at any time after the commencement of the meeting. The Presiding Officer may allow any amendment to be moved at any stage during the discussion of the resolution. No amendment to a resolution shall be moved which may negative the effect of the resolution. Every amendment shall be relevant to the subject matter of the resolution. Every resolution or amendment shall be seconded before it is taken up for consideration. Amendment shall be taken up in the reverse order, the last being taken first. The decision of the Presiding Officer regarding the admissibility or otherwise of a resolution or amendment shall be final.

51.

President to give effect to resolution and decision.

- The Presiding Officer shall give effect to all resolution or decisions passed or arrived at by the Board or any Committee from time to time.

52.

A member wishing to have any information concerning any trust in the State or any subject connected with the management or administration of any trust may, in writing, demand such information from the President and may have access to the records of the Board with his permission.

53.

An application for the inspection of any record or register of religious trust may be granted by the Superintendent under orders of the President on payment of one rupee for each day or part of a day spent on inspection. The application shall

specify the particulars of the documents and contain such other information as may be necessary for identifying the documents required for inspection. Such inspection shall be allowed during office hours only subject to such supervision as the President or Superintendent may in each case direct.

54.

All applications for copies of proceedings or other records of the Board shall be made to Superintendent in the prescribed form which can be obtained from the Accountant of the Board on payment of four annas only. Such application may be presented either in person at the office of the Board during office hours or sent by registered post.

55.

Certified copies of the records or proceedings of the Board or any Committee or of any subordinate registered trust may be granted by the Superintendent of the Board under the direction of the President on payment of a copying fee of four annas for every 100 words or a fraction thereof whether the proceedings or records are in English or in an Indian Language and a fee of one rupee up to three pages and eight annas for every additional page above three pages. Four figures shall be reckoned as one word. Postal charges for the transmission of the orders on the applications and of the copies, if any, ordered to be supplied shall have to be paid by the applicant unless taken delivery on in person:

Provided that the President or Superintendent may reject an application for copy of any record or proceeding of the Board or any Committee or of any subordinate registered trust, in the interest of the trust concerned.

56.

Application for copies of or records appertaining to any year previous to the current year shall, in addition to the copying charges, to be accompanied by searching fee according to the following scale:-

(a)

Fee payable for the first document or entry applied for if only one document or entry is applied for, then for that document or entry- Re.1.

(b)

Fee payable for every document or entry other than the first included in the same application and connected with the same subject-re. 0-8-0.

Note.-Only one searching fee of one rupee need be paid for all papers filed together and forming single record.

(c)

When the party does not know to which of the two or more years the document or entry belongs, the fee for searching the records of every year other than the first shall be-Re. 0-8-0.

57.

All records and minutes of proceedings of the Board and its committees and all registers shall be kept in the office of the Board and on no account shall be removed to any place without the express sanction of the Board. If however, any record is required to be produced before any court, it may be produced under the written permission of the President of the Board.

Appendix I

List of Books and Registers to be maintained by Trustee

[Bye-law 45]

1. Daily account of income and expenditure on cash and kind.
2. Account of expense on litigation, if any.
3. Monthly abstract register of accounts in cash and kind.
4. Printed receipt books.
5. Register Mauzaha with tauzi and revenue and cess payable for each per kist.
6. Land Register containing detailed list of each kind of land under different sub-heads.
7. Settlement Register.
8. Register of public trust.
9. Register of temples under the trustees and ornaments, and
10. Register of temples under the trustee and ornaments and utensil of the deity.
11. Pass Book of money deposited in the Bank.
12. Audit report Register.
13. Establishment Register, both of mofassil and headquarters.
14. Register of order/direction received by the trustee from the Board.

15. Stock Register.
16. Register of civil, revenue and criminal cases.
17. Register of expenses connected with cultivation of land.
18. Mutation Register.
19. Register of Miscellaneous Income.
20. Register of servants with their pay and allowance, if any.

Appendix II

Form I

[Vide Rules 8 and 14 of the Bihar Digamber Jain Religious Trust Rules, 1955]

1. Serial No.
 2. Name of the Trust.
 3. Name of the village, post office, police-station, sub-division and district in which it is situated (Also the nearest Railway Station).
 4. Names of minor Maths or temples appurtenant the main Math or temple and their situation.
 5. Names of trustees and managers with their addresses, date of appointment and termination of office.
 6. Particulars as to whether the institution is administered under a scheme settled by the court or by trustees without any such control and particulars as to any provision in any document or custom, if any, regarding succession to the office of the trustees or managers.
 7. Particulars of documents about the origin or creation of trust.
 8. Name of founder or donor, if known.
 9. Objects of the trust.
 10. Details of properties both movable and immovable held by the trust.
 11. Details of properties, both movable and immovable, sold, transferred & settled during the last financial year.
 12. Annual income. (This should be of the preceding financial year and should be shown as below):-
 - (a) Income from all sources; and
 - (b) Net income after deducting the amount payable as revenue rent, taxes, local and other cesses and cost of management at 12½ per cent.]
 13. Annual Expenditure:-
 - (a) On remuneration to trustees and managers.
 - (b) On establishment and staff.
 - (c) On religious objects.
 - (d) On charitable objects.
 - (e) On miscellaneous items.
 14. Particulars as to important customs and usages followed.
 15. Particulars of encumbrances on the trust properties.
 16. Any other information of importance.
 17. Remarks,
- Signature of trustee

Appendix III

Form II

Six-monthly Return for the period ending..... for.....Trust.

Tauzi No.

Name of Property or estate

Share in the property or estate

Nature of trust

Amount of L.R. cess and other Government demand

Date and amount of payment of Government dues

Arrear if any

Reasons for non-payment of full dues

Remarks

1

2

3

4

5

6

7

8

9

Appendix IV

Serial No.

Name and kind of trust with district and the name
of the present trustee

Properties named in the trust deed.

Income of the properties mentioned in the trusts
deed.

Properties shown in Form No. 1

Income shown in Form No. 1

Difference, if any

1

2

3

4

5

6

7

Rs.

Rs.

Rs.

Total demand and payment of Government dues

Total realisation in the year

Total Collection charges and payment made

Total net balance in the hands of the trustee

Total expenditure during the year

Surplus cost in the hands of trustee after
defraying all expenses

Remarks

8

9

10

11

12

13

14

Rs.

Rs.
Rs.
Rs.
Rs.
Rs.
Rs.

Appendix V

Form of application

[See Bye-law 50]

To,
The

I.....son of.....resident of village.....thana in the district of on behalf of the trustee of.....desire to inspect/take copy of the documents mentioned below for the purpose of...

Details of Documents

Serial No.

Particulars of documents

Remarks

1.2.3.4.5.6.7.8.9.10.

2. I declare that a fee of Re./Rs.....as required, by bye-laws nos. 27, 28 & 30 has been deposited with the.....and the receipt thereof attached.

3. I wish to inspect/take copy of the document enumerated above on.....

Signature.....

Date.....

Orders passed by.....

Signature.....

Designation.....

Date.....

N.B.-The orders passed on this behalf should be communicated to the applicant immediately.

2. In case.....declines to allow inspection or to grant copies to the applicant, the fee deposited by the applicant should be refunded.

Appendix VI

Form V

Budget estimate for the year 200.....to 200.....of the.....Trust

Income during the year 200.... to 200.... from all sources

Expenditure during the year 200.... to 200.... with details.

Rs.

Rs.

1.

Income from the properties mentioned in the trust deed or in charge of the trustee during the year 200.... to 200.....

1.

Establishment charge.

2. (a)

Maintenance of the temple and other properties (to be shown separately).

(b)

Expenditure on cultivation.

2.

Income from other sources during the year 200.... to 200....

(each item of income to be shown separately).

3.

Towards fulfilment of the objects mentioned in the trust deed
or on subject on which expenses have been incurred uptill now
(to be shown separately under each head).

4.

Government dues

(1) Land Revenue

(2) Cess.....

(3) Other dues.....

5.

Board's dues

(1) Trust fee.....

(2) Other dues.....

6.

Expenses on Litigation, if any.....

7.

Miscellaneous expenditure during the year 200.... to 200....

Total.....

Total.....

The details of the yield will be given under the following heads:-

1.

Quantity received from tenants in respect of the lands
cultivated by them.

1.

Quantity spent on Ragand Bhogand feeding Sadhus, beggars,
etc. (to be shown separately).

2.

Quantity received from bakashtal and inkhas cultivation.

2.

On establishment to the staff.

3.

Quantity received by purchase.

3.

On cultivation.

4.

Received from other sources, such as, gift, donations, etc.

4.

Sold

5.

.....

5.

Miscellaneous.

N.B.-Expenditure from one head to another can be transferred only with previous permission of the Board.

Signature of Trustee

Related AI tags, queries and research notes

Translation